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SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
DEFENDANTS' DEMURRER TO
PLAINTIFF'S FIRST AMENDED
COMPLAINT**

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 Defendants CSAA INSURANCE EXCHANGE (“CSAA”), CARBONE, SMITH &
2 KOYAMA (“CARBONE”), and MICHAEL R. CHAMBERS (“CHAMBERS”) (collectively
3 referred to as “Defendants”) jointly submit the following Memorandum of Points and Authorities
4 in Support of their Demurrer to Plaintiff FRANCISCUS DYLAN ROSARIO’s (“Plaintiff”) First
5 Amended Complaint (“FAC”). (See RFJN **Ex. A**, *Plaintiff’s FAC*).

6 **I. INTRODUCTION**

7 Plaintiff’s First Amended Complaint (“FAC”) is an improper collateral attack on a valid jury
8 verdict and judgment entered by this Court following a full and fair trial in April 2025. Rather than
9 pursue relief through the appellate process—which Plaintiff has in fact already initiated—Plaintiff
10 attempts to relitigate issues previously raised, litigated, and rejected by the jury and the Court.
11 Plaintiff now targets the original defendant’s insurance carrier for proper and required litigation
12 conduct.

13 The entire premise of Plaintiff’s current lawsuit presents the erroneous and speculative
14 theory that the entire defense team lied to this Court about evidence that was actually presented at
15 trial, but which Plaintiff was unable to use effectively before the jury. In short, the jury considered
16 the evidence but disagreed with Plaintiff on its importance. Setting aside the plethora of factual
17 errors, Plaintiff’s FAC, on its face, is subject to demurrer because Plaintiff’s claims, even if true,
18 cannot obtain the requested relief. Plaintiff’s entire FAC is subject to demurrer without leave to
19 amend.

20 **II. SUMMARY OF ARGUMENT**

21 Plaintiff Alleges a Single Cause of Action: Independent Action in Equity to Set Aside
22 Judgment. This claim cannot survive demurrer, for several reasons. First, this Court has no
23 jurisdiction to hear what is tantamount to an appeal of this Court’s prior judgment.¹ Second,
24 Plaintiff is estopped from attempting this collateral attack on this prior judgment. Third, Plaintiff’s
25 claim is time-barred. Fourth, Plaintiff cannot state a valid cause of action under his cited “extrinsic
26 fraud” theory. Fifth, the litigation privilege (Civ. Code § 47(b) bars this claim. Sixth, Plaintiff has
27

28 ¹ (See *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. **A173827**); (see also RFJN **Ex. Q**, Plf’s Notice of Appeal; RFJN **Ex. R**, Plf’s Notice of Designating Record on Appeal).

1 improperly joined Defendants and lacks standing as to these demurring Defendants. And finally,
2 seventh, Plaintiff's entire FAC is uncertain and legally unintelligible.

3 **III. STATEMENT OF THE FACTS**

4 **A. The Parties**

5 Plaintiff is FRANCISCUS DYLAN ROSARIO ("Plaintiff").

6 Defendant CSAA INSURANCE EXCHANGE ("CSAA") was the insurance carrier for
7 SUBHI ABDELHALIM ("Insured") during the underlying trial.

8 Defendant CARBONE, SMITH & KOYAMA ("CARBONE") was the initially retained
9 defense counsel in Plaintiff's underlying litigation.

10 MICHAEL R. CHAMBERS ("CHAMBERS") was the handling defense attorney at
11 CARBONE, pre-trial. CARBONE and CHAMBERS substituted out of the case, prior to Plaintiff's
12 jury trial on the underlying litigation. (*See* RFJN **Ex. D**, *Substitution of Defense Counsel*).

13 CSAA, CARBONE, and CHAMBERS all together, jointly, file this Demurrer.

14 **B. Factual And Procedural Background**

15 This litigation presents an improper collateral attack on Plaintiff's prior loss at trial. Plaintiff
16 already lost his personal injury suit, receiving a defense verdict on those claims in April 2025.
17 Plaintiff now sues again, ostensibly, to set aside judgment from his underlying loss at trial. Plaintiff's
18 FAC alleges a sole cause of action in the form of an "Independent Action in Equity to Set Aside
19 Judgment for Extrinsic Fraud." The FAC names i) the same original defendant SUBHI
20 ABDELHALIM ("Insured"); and now adds new parties, including: ii) CSAA INSURANCE
21 EXCHANGE ("CSAA"), the provider of Insured's policy of insurance; iii) and all insurance defense
22 counsels retained by CSAA to defend Insured. (*See* RFJN **Ex. C**, *Register of Actions, Rosario v.*
23 *Abdelhalim, Case No. CGC-21-594102*).

24 Plaintiff also names all members of the trial defense who litigated the case before the jury:
25 Phillips, Spallas, and Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively
26 referred to as "PSA"). Plaintiff's FAC alleges against Defendants and PSA a series of rambling and
27 incoherent acts of allegedly "fraudulent" conduct—all of which is inextricably tied to Defendants'
28 litigation activity and is legally unsupported.

1 The gravamen of Plaintiff's current allegations is that this Court should set aside its prior
2 judgment from April 2025 because "[t]he fraud committed here was a scheme that prevented a fair
3 contest by: (a) "obstructing access to and useable presentation of critical [evidence]; and (b)
4 "making false or misleading representations to the Court, which induced procedural and evidentiary
5 ruling under materially false pretenses." (FAC p. 2, line 13-14). Plaintiff's allegations here focus on
6 two key areas, as against all Defendants, surrounding the evidence that was presented to the jury, at
7 trial. Specifically, first, Plaintiff claims that "[t]he defense² obstructed Plaintiff's ability to present
8 material evidence, including:

- 9 a. (a) a 911 call recording containing Defendant Abdelhalim's party admission ("I barely
10 hit him with anything"),
11 b. (b) body-worn camera footage containing eyewitness statements, and
12 c. (c) CAD logs. (FAC p. 2, line 6-9).

13 In fairness, PSA *did* attempt to exclude this evidence; however, the Court denied
14 Defendant's motions in limine targeting this evidence. (See RFJN Ex. E, Def's MIL # 6; RFJN Ex.
15 F, Def's MIL # 8; RFJN Ex. G, Def's MIL # 17; and RFJN Ex. H, Order re Trial Scheduling and
16 MILs).

17 And second, Plaintiff claims that

18 "[t]he defense then made false and misleading representations to the Court
19 about receipt, possession, and prior production of these materials, falsely denying
20 knowledge and receipt despite having received the materials during discovery. The
21 Court relied on those representations to deny continuances, exclude materials, and
22 defer admission, which impaired Plaintiff's ability to present the evidence in a
23 usable, timely way at a liability-only trial." (FAC p. 2, line 9-13).

24 Crucially, the FAC does *not* claim that these items of "material evidence" (911 calls, body-
25 worn camera footage, and CAD logs) were excluded from presentation to the jury. In fact, on the
26 contrary, all this evidence *was* presented to the jury. (See RFJN Ex. H, Order re Trial Scheduling
27 and MILs) (denying original defendant's motion in limine to exclude the alleged "material
28 evidence"—MIL #17). Instead, Plaintiff's allegations focus on Defendants' acquisition, retention,
and production of this material evidence, during the course of pre-trial discovery, and essentially,
that Defendants were negligent in how they litigated the defense of the underlying lawsuit. This is

² Plaintiff does not define "the defense," in the FAC; hence, that term is interpreted to apply to all named Defendants, including the herein demurring Defendants.

1 not actionable. All the acts alleged against Defendants are squarely litigation activity and cannot
2 constitute a cause of action against Defendants.³

3 Notably, despite being presented the “material evidence” in question, the jury returned a
4 defense verdict at trial. Now, Plaintiff seeks to unwind a valid jury verdict and judgment.

5 **C. Plaintiff’s Original Suit Arises Out Of Allegations That The Insured Hit Plaintiff With**
6 **His Car, A Claim That Was Ultimately Rejected At Trial Despite The Jury’s**
7 **Consideration Of The “Material Evidence” In Question**

8 Plaintiff’s underlying personal injury lawsuit arose from an alleged motor vehicle on scooter
9 incident that occurred on February 4, 2021. Plaintiff alleged that he was struck by Insured’s vehicle
10 while Plaintiff was walking (or riding, it is unclear) a scooter through an intersection. Plaintiff filed
11 suit against Insured, alleging personal injuries, and the matter proceeded to trial. All the “material
12 evidence” (911 calls, bodycam footage, and CAD logs) referenced in Plaintiff’s FAC was submitted
13 to the jury and testimony was offered by both sides on the relevance (or irrelevance) of that evidence.
14 Ultimately, a defense verdict was returned in favor of the Insured. The jury found that the Insured—
15 Subhi Abdelhalim—was simply not negligent in causing the incident.

16 After trial, Plaintiff filed a flurry of motions to set aside the jury’s defense verdict and this
17 Court’s judgment, including: i) a Motion for Judgment Notwithstanding the Verdict (*See* RFJN **Ex.**
18 **I**, *Plf’s JNOV*; *see* RFJN **Ex. J**, *Plf’s Decl. ISO JNOV*; *see* RFJN **Ex. K**, *Def’s Opp. to Plf’s JNOV*);
19 ii) Motion to Vacate; iii) A Second Motion to Vacate for Fraud on the Court; iv) Motion for New
20 Trial (*See* RFJN **Ex. L**, *Plf’s Mtn for New Trial*; RFJN **Ex. M**, *Def’s Opp. to Plf’s Mtn for New Trial*
21 *and Mistrial*); v) Motion for Mistrial; vi) A Second Motion for Mistrial; vii) an Ex Parte Request
22 for Stay; and viii) a Request for statement of Decision. All Plaintiff’s post-trial motions were denied.
23 (*See* RFJN **Ex. N**, *Order on Plf’s Post-Trial Mtns*). Crucially, in those post-trial motions, Plaintiff
24 presented all the same factual arguments, and others, surrounding Defendants’ alleged
25 “mishandling” of the “material evidence” and alleged “fraud on the Court.”

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27 ///

28 ³ Defendants have also concurrently filed a Special Motion to Strike under Code Civ. Proc. § 425.16 (“Anti-SLAPP Motion.”)

1 **D. Defendants CSAA, CARBONE, and CHAMBERS Had No Role in Litigation at the**
2 **Jury Trial and Therefore No Role in the Alleged “Fraud”**

3 As a threshold matter, the FAC alleges that it was only PSA who committed this “fraud on
4 the Court”—none of these moving Defendants. The FAC asserts: “Defendants PSA,
5 Navaratnasingham, and Reyna were the counsel who made, ratified, and perpetuated these false
6 representations” to the Court, at the motion in limine phase, pre-trial. (*FAC* p. 9-10).

7 None of the allegations of “fraud on the Court” are even alleged against these moving
8 Defendants. Indeed, Defendants CSAA, CARBONE, and CHAMBERS did not litigate at trial and
9 had no role in the alleged “misleading representations to the Court.” (*FAC* p. 10:16-22). The FAC
10 goes on to re-litigate a series of motions in limine filed by PSA—not these moving Defendants.
11 Further, the allegations go on to claim—not that any of the “material evidence” was excluded
12 (because it was not excluded)—but instead claims that the Court i) excluded a “supplemental
13 report”; ii) provided an “acceptance of false or misleading information”; iii) wrongly denied a
14 request for a trial continuance; and apparently iv) should have “ordered immediate on-the-record
15 verification measures...to allow Plaintiff to authenticate and present [the ‘material evidence’].”
16 (*FAC* p. 13-14). The FAC’s proposed remedies are not at all clear.

17 Indeed, even before trial, Plaintiff filed a lengthy and procedurally improper series of
18 motions seeking to disqualify the assigned trial judge: the Honorable Garrett L. Wong. In his “Prayer
19 to Judge Hon. Rochelle East” [sic], accompanying his motions, Plaintiff drew specific attention to
20 his complaints about Judge Wong’s pre-trial rulings, including his specific complaints that

- 21 1) “[t]he defense has actively attempted to suppress not only the 911 records but also the
22 official police records”; (*See* RFJN **Ex. Q**, p. 5:7-8, *Plf’s Prayer to Judge East*)
23 2) “With the financial backing of AAA (CSAA Insurance), the defendant has secured
24 premier legal representation, effectively impeding the course of justice. (*Id.* at 7:28-8:2)
25 1) Official 911 emergency records contain multiple admissions by the defendant, and
26 eyewitness testimony confirms that he forcefully ran me over”; (*Id.* at 8:2-3)
27 2) “[t]he defense clearly aims to keep everything out of the jury’s view, as denial is a core
28 part of AAA PSA Law’s modus operandi.” (*Id.* at 46:19-20)

29 This very Court issued a lengthy and abundantly clear Order denying Plaintiff’s motions
30 seeking to disqualify the trial judge. That order rejects Plaintiff’s evidentiary arguments, the same
31 evidentiary arguments presented here, in his FAC. (*See* RFJN **Ex. P**, *Order Denying Plf’s “Prayer”*)

1 and 170.6). Plaintiff is re-raising all the same issues already; but now, he asserts a bevy of factual
2 allegations against the entire defense team for their litigation activity.

3 **1. Specific Allegations Against CSAA in the FAC**

4 As a threshold matter, the allegations against CSAA cannot possibly constitute a cause of
5 action. Moreover, relevant to this Anti-SLAPP motion, all the activity alleged against CSAA is
6 protected litigation activity. The FAC makes the following factual allegations against CSAA:

- 7 1) CSAA was “[t]he liability insurer that funded, directed, and controlled the
8 defense.” (*FAC* p. 2, line 1-2).
- 9 2) CSAA Insurance Exchange is the real party in interest that funded, directed, and
10 ratified the litigation positions and representations that procured the judgment
11 through fraud on the court. CSAA's institutional denial practice, including its
12 issuance of a categorical “investigation concluded” denial letter just 21 days after
13 the collision without obtaining foundational objective evidence, is the subject of
14 the related action CGC-25-631802. (*FAC* p. 4:28-5:2).
- 15 3) “The defense obstructed Plaintiff’s ability to present material evidence,
16 including:
17 d. (a) a 911 call recording containing Defendant Abdelhalim's party
18 admission (“I barely hit him with anything”),
19 e. (b) body-worn camera footage containing eyewitness statements, and
20 f. (c) CAD logs. (*FAC* p. 2, line 6-9).
- 21 4) The defense then made false and misleading representations to the Court about
22 receipt, possession, and prior production of these materials, falsely denying
23 knowledge and receipt despite having received the materials during discovery.
24 The Court relied on those representations to deny continuances, exclude
25 materials, and defer admission, which impaired Plaintiff's ability to present the
26 evidence in a usable, timely way at a liability-only trial. (*FAC* p. 2, line 9-13).
- 27 5) “CSAA Insurance Exchange, made multiple false and misleading representations
28 to the Court about receipt, possession, and prior production of the materials.
These false representations were memorialized in written motions in limine and
in open court statements.” (*Compl.* p. 10.)

29 **2. Specific Allegations Against Pre-Trial Litigation Counsel: CARBONE and**
30 **CHAMBERS in the FAC**

31 The allegations against CARBONE and CHAMBERS are identical, with only slight
32 verbiage changes. Hence, for brevity, those allegations against them are summarized jointly, below:

- 33 1. CARBONE and CHAMBERS “had possession of the defense file when the 911 audio,
34 body-worn camera footage, and CAD materials were served on defense counsel during
35 discovery.” (*FAC* p. 6:13-14).

36 ///

2. On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA pursuant to the Substitution of Attorney ... without ensuring proper documentation and conveyance of the production history to successor counsel. (*FAC* p. 6:15-18).
3. This failure enabled [PSA] to make false and misleading representations to the Court that the materials were "news to me" and had not been received until the eve of trial, when in fact the defense had possessed them during Defendant CHAMBERS' tenure. (*FAC* p. 6:18-21).
4. Defendant CHAMBERS' [and CARBONE's] conduct constituted fraud on the court and was a proximate cause of the process corruption that procured the judgment. (*FAC* p. 6:21-22).

None of these alleged acts of Defendants can constitute a cause of action—much less the cause of action alleged in the *FAC*, to set aside this Court's prior Judgment.

IV. LEGAL STANDARD

Generally, "[a] demurrer to a complaint or cross-complaint may be taken on the whole complaint...or any of the causes of actions stated therein." (Cal. Code Civ. Proc. ("C.C.P."), §430.50.) A pleading may be objected to by a demurrer if the pleading does not state facts sufficient to constitute a cause of action or if it is uncertain, or the person filing the pleading does not have the legal capacity to sue. (C.C.P. § 430.10.) A pleading is uncertain if it is ambiguous or unintelligible. (*Id.*) A demurrer challenges the sufficiency of a complaint by raising questions of law. (*ABF Capital Corp. v. Berglass* (2005) 130 Cal.App.4th 825, 833.) This means that a complaint must state facts sufficient to constitute a cause of action upon which relief may be based. (*Young v. Gannon* (2002) 97 Cal.App.4th 209, 220.)

Moreover, a complaint must contain a statement of the facts constituting the cause of action in ordinary and concise language. (C.C.P. § 425.10(a)(1).) It must "set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source, and extent of the cause of action." (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 156-157.) As such, a plaintiff must show the complaint alleges facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physician's Services* (2000) 81 Cal.App.4th 39, 43.) A demurrer for uncertainty is intended to be directed at the uncertainty existing in the allegations actually made, not the failure to incorporate sufficient facts in the pleading. (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 146.)

1 When considering a demurrer, a court must accept as true all material facts pled in the
2 complaint and those arising by reasonable implication. (*ABF Capital Corp. v. Berglass* (2005) 130
3 Cal.App.4th 825, 833.) However, while all material facts pled must be treated as true, contentions,
4 deductions, or conclusions of fact or law are not. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

5 Finally, the burden of proving a reasonable possibility of curing the defect in a complaint
6 dismissed on demurrer is squarely on the plaintiff. (*Price v. Dames & Moore* (2001) 92 Cal.App.4th
7 355, 359.) A demurrer looks only to the face of the pleadings and to matters judicially noticeable,
8 and not to the evidence or other extrinsic matters. (*Id.*) A trial court does not abuse its discretion by
9 sustaining a demurrer without leave to amend if it appears that under applicable substantive law
10 there is no reasonable possibility that an amendment could cure the complaint's defect. (*Coffman*
11 *Specialties, Inc. v. Dept. of Transp.* (2009) 176 Cal.App.4th 1135, 1144; *Dalton v. East Bay Mun.*
12 *Utility Dist.* (1993) 18 Cal.App.4th 1566, 1570-1571.)

13 IV. LEGAL ARGUMENT

14 Plaintiff's FAC is subject to demurrer for an abundance of reasons, including: A)
15 Defendants' conduct is privileged conduct under Civ. Code § 47(b); B) Plaintiff is collaterally
16 estopped from asserting this claim; C) the statute of limitations bars relief; D) the FAC lacks
17 standing and commits misjoinder; and E) a host of other defects under Code Civ. Proc. § 430.10,
18 including failure to state a valid cause action, *inter alia*, further justify demurrer.

19 A. The FAC's Deficiencies Under Code Civ. Proc. § 430.10

20 The FAC has a bevy of bases for demurrer, as enumerated in Code Civ. Proc. § 430.10,
21 which provides in relevant part:

22 The party against whom a complaint ... has been filed may object, by demurrer ...
23 to the pleading on any one or more of the following grounds:

24 (a) The court has no jurisdiction of the subject of the cause of action alleged in the
25 pleading....

26 (c) There is another action pending between the same parties on the same cause of
27 action....

28 (e) The pleading does not state facts sufficient to constitute a cause of action.

(f) The pleading is uncertain. As used in this subdivision, "uncertain" includes
ambiguous and unintelligible.

///

1 1. No Jurisdiction

2 This Court does not have jurisdiction to hear an appeal this Court’s own prior entry of
3 judgment. Plaintiff’s entire FAC in reality is an unlawful and improper appeal at the Superior Court
4 level, masquerading as a new lawsuit. Code Civ. Proc. § 904.1(a) provides: that “[a]n appeal, other
5 than in a limited civil case, is to the court of appeal,” including from “a judgment.” Further, “once
6 a judgment has been entered, the trial court loses its unrestricted power to change that judgment.”
7 *Rochin v. Pat Johnson Manufacturing Co.* (1998) 67 Cal.App.4th 1228, 1237.

8 The ultimate relief, implicit in Plaintiff’s FAC, is to set aside judgment. Having failed that
9 effort in his flurry of post-trial motions, Plaintiff now, improperly, files this new lawsuit—in the
10 same Court—seeking that same end. What Plaintiff truly seeks is an appeal of this Court’s prior
11 verdict and judgment. Indeed, Plaintiff has filed an appeal, and that appeal remains pending. (*See*
12 *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. A173827; RFJN Ex. Q, Plf’s Notice of
13 Appeal; RFJN Ex. R, Plf’s Notice of Designating Record on Appeal). Therefore, this Court simply
14 does not have jurisdiction to hear this matter while that appeal remains pending.

15 2. Another Action Pending

16 The FAC is subject to demurrer as there are, in fact, not just one but two (2) other actions
17 pending. First, there is Plaintiff’s pending appeal of the underlying jury verdict and judgment. (*See*
18 *Rosario v. Abdelhalim*, CA 1st Dist. Ct. of Appeal, Case No. A173827; RFJN Ex. Q, Plf’s Notice of
19 Appeal; RFJN Ex. R, Plf’s Notice of Designating Record on Appeal). At a minimum, Plaintiff’s
20 pending appeal seeking to set aside the very judgment justifies demurrer.

21 Second, the FAC also acknowledges another action pending, specifically, “the related action
22 CGC-25-631802.” (*FAC* p. 4:28-5:2); (*See also* RFJN Ex. B, *Plaintiff’s FAC in Related Case*).
23 Notably, Plaintiff’s statement in the related case (*Ibid.*) that “Plaintiff does not seek reversal or
24 modification of any judgment in the Underlying Action.” (*Rosario v. CSAA original Compl. p. 7*)
25 (*emphasis added*) is a patent misrepresentation to this Court, based on the allegations in this FAC
26 that seeks that very result. Regardless, these other pending actions—crucially, and most importantly,
27 the appeal—justifies the demurrer of the FAC.

28 ///

1 3. No Facts Sufficient to Constitute a Cause of Action

2 Plaintiff’s FAC does not allege a cognizable cause of action. Indeed, entire thrust of the FAC
3 is what should have been filed—if at all—as a § 473(b) Motion in the original case. As drafted,
4 Plaintiff cannot state a cause of action “to set aside judgment,” as no such cause of action exists in
5 these circumstances. Even if the Court found such a cause of action—outside of a § 473(b) Motion—
6 could exist, the FAC is still subject to demurrer. The sole cause of action to “Set Aside Judgment”
7 is barred by Civil Code § 47(b)—as all conduct alleged against Defendants constitutes protected
8 litigation conduct and privileged speech and petitioning activity. But even *if* it were not, Plaintiff
9 still cannot state facts sufficient to constitute a cause of action.

10 As a threshold matter, Plaintiff is clearly trying to unwind a valid jury verdict and judgment.
11 However, the U.S. Supreme Court has long held:

12 “[t]here are no maxims of the law more firmly established, or of more value
13 in the administration of justice, than ... to prevent repeated litigation between the
14 same parties in regard to the same subject of controversy...” *U.S. v.*
Throckmorton (1878) 98 U.S. 61, 65.

15 The U.S. Supreme Court in *Throckmorton* went on to state: “the doctrine [of setting aside a
16 judgment] is equally well settled that the court will not set aside a judgment because it was founded
17 on a fraudulent instrument, or perjured evidence, or for any matter which was actually presented
18 and considered in the judgment assailed.” (*Id.* at 66.)

19 Here, Plaintiff already had every opportunity to present all the FAC’s arguments. In fact, he
20 did just that. First, Plaintiff was able to present the “material evidence,” he now complains of, to the
21 jury. (*FAC* p. 2, line 6-9.) However, the jury saw that “material evidence” (911 call, bodycam
22 footage, etc.) differently and ruled against Plaintiff. Then, post-verdict, the Court ruled against
23 Plaintiff on his post-trial motions. Plaintiff has not pled a sufficient basis to set aside the jury’s
24 verdict and this Court’s judgment.

25 Similarly, Plaintiff cannot demonstrate extrinsic fraud. “Whether the case involves intrinsic
26 or extrinsic fraud or mistake is not determined abstractly. ‘It is necessary to examine the facts in the
27 light of the policy that a party who failed to assemble all his evidence at the trial should not be
28 privileged to relitigate a case, as well as the policy permitting a party to seek relief from a judgment

1 entered in a proceeding in which he was deprived of a fair opportunity fully to present his case.”
2 *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 473, citing *Jorgensen v. Jorgensen* (1948) 32 Cal.2d 13,
3 19. Courts have held that this cause of action is less about actual misconduct on the other party, but
4 rather “the excusable neglect of the [moving party] to appear and present his [or her] claim or
5 defense.” (*In re Marriage of Baltins* (1989) 212 Cal.App.3d 66.) “The term “extrinsic” refers to
6 matters outside of the issues framed by the pleadings, or the issues adjudicated.” (*Aldrich v. San*
7 *Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 738.)

8 Here, there no was fraud (extrinsic or otherwise) and everything in the FAC constitutes
9 “issues [already] adjudicated,” at trial. (*Aldrich, supra*, 170 Cal.App.3d at 738.) The extrinsic fraud
10 required is one that essentially prevents a Plaintiff from having their day in court and arguing their
11 case, such as an inducement into a settlement, or other fraudulent representations to deprive a party
12 of seeking a remedy at law. Losing a motion or failing to get pieces of discovery admitted during a
13 trial does not mean that one was denied their day in court. A case analyzing “extrinsic fraud” is
14 entitled *Kulchar v. Kulchar* (1969) 1 Cal.3d 467. The *Kulchar* court discussed circumstances which
15 may constitute actual extrinsic fraud, thus:

16 Extrinsic fraud usually arises when a party is denied a fair adversary hearing because
17 he has been ‘deliberately kept in ignorance of the action or proceeding, or in some
18 other way fraudulently prevented from presenting his claim or defense.’ ... as by
19 keeping him away from court, a false promise of a compromise; or where the
20 defendant never had knowledge of the suit, ... or where an attorney fraudulently or
21 without authority assumes to represent a party and connives at his defeat; or where
22 the attorney regularly employed corruptly sells out his client's interest to the other
23 side. (*Kulchar, supra*, 1 Cal.3d at 471) (*emphases added*).

24 The *Kulchar* court found no extrinsic fraud, citing reasons similar to this case, and concluded
25 that that plaintiff presented merely “a case in which a party failed to assemble all his evidence at the
26 trial.” (*Kulchar, supra*, 1 Cal.3d at 473.) The same is true here. Plaintiff was not denied his day in
27 court. He sought admission of the “material evidence,” and the Court ruled squarely on those issues
28 by denying Defendant’s motion to exclude that evidence. (FAC p. 2, line 6-9; RFJN **Ex. H**, *Order*
re Trial Scheduling and MILs). The jury simply disagreed with Plaintiff on liability.

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1 Plaintiff's FAC explicitly acknowledges that the underlying judgment "is valid on its face,"
2 but goes on to erroneously assert "fruit of the poisonous tree" in obtaining that judgment. (*FAC* at
3 25) (*emphasis added*). However, mere discovery disputes, evidentiary rulings, and alleged
4 misrepresentations occurring within the adversarial process constitute matters *intrinsic* to the
5 underlying litigation and cannot support an independent equitable action.

6 Thus, the FAC is subject to demurrer without leave to amend.

7 4. Uncertainty

8 Plaintiff's complaint is unintelligible and ambiguous, with such little substance that it
9 confuses the defense as to what he alleges. Only when "a complaint contains substantive factual
10 allegations sufficiently apprising defendant of the issues it is being asked to meet, [can it] survive a
11 demurrer." (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135.) Generally,
12 "demurrers for uncertainty are disfavored, and are granted only if the pleading is so
13 incomprehensible that a defendant cannot reasonably respond." (*A.J. Fistes Corp. v. GDL Best*
14 *Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 (*citing Mahan v. Charles W. Chan Ins. Agency,*
15 *Inc.* (2017) 14 Cal.App.5th 841.)

16 Plaintiff's pleadings do not properly explain what it is that Defendants are supposed to
17 defend against. For one, all the allegations seem to focus on the conduct of PSA at trial—not these
18 demurring Defendants. Further, Plaintiff does not plead with the required particularity the fraud
19 element of his claim. While demurrers for uncertainty are normally disfavored, Plaintiff's complaint
20 does not explain a cognizable basis for relief, or an actual cause of action.

21 **B. The FAC Targets Protected Litigation Conduct under Civ. Code § 47(b)⁴**

22 The entire factual basis contained in the FAC targets privileged conduct and communications
23 under Civ. Code § 47(b), which provides in relevant part:

24 A privileged publication or broadcast is one made...(b) In any (1) legislative
25 proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized
26 by law, or (4) in the initiation or course of any other proceeding authorized by law
and reviewable pursuant to Chapter 2...

27 ///

28

⁴ Defendants have concurrently filed a Special Motion to Strike under Code Civ. Proc. § 425.16.

1 All alleged conduct occurred squarely within the judicial proceeding. The entire FAC arises
2 entirely from the privileged litigation conduct of Defendants in the course of defending the third-
3 party Insured against Plaintiff's prior lawsuit. No amendment could possibly transform any of the
4 alleged conduct into non-privileged activity, the litigation privilege presents an incurable legal bar.

5 Defendants concurrently seek relief under Code of Civil Procedure section 425.16. While
6 the demurrer independently disposes of the FAC as a matter of law, the Anti-SLAPP motion
7 provides an alternative and independent basis for dismissal and recovery of fees.

8 The demurrer should therefore be sustained **without leave to amend.**

9 **C. Collateral Estoppel**

10 Plaintiff is estopped from attempting this end-around of this Court's underlying jury verdict
11 and entry of judgment.

12 "A collateral attack is an attempt to avoid the effect of a judgment or order made in some
13 other proceeding." *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v.*
14 *Nasser Bros. Realty Co.* (1943) 58 Cal.App.2d 878, 882.) "An attack in a second action on an earlier
15 judgment is collateral." (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) "A
16 judgment of a court of general jurisdiction can only be set aside on collateral attack if the judgment
17 is void on the face of the record." (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, "collateral
18 estoppel precludes relitigation of issues argued and decided in prior proceedings." (*Singh v.*
19 *Lipworth* (2014) 227 Cal.App.4th 813, 826.)

20 Here, the FAC's entire effort is to set aside a previously entered, valid judgment. Nowhere
21 does the FAC claim that the judgment is void on its face. Moreover, all those issues presented in
22 this present FAC were already "argued and decided in prior proceedings." (*Singh v. Lipworth* (2014)
23 227 Cal.App.4th 813, 826); (*see also* RFJN **Ex. H**, *Order re Trial Scheduling and MILs*); (RFJN
24 **Ex. P**, *Order Denying Plf's "Prayer" and 170.6*); (RFJN **Ex. S**, *Notice of Entry of Judgment*).

25 **D. Plaintiff's Effort to Set Aside Judgment is Barred by the Statute of Limitations**

26 Plaintiff's proper means to *attempt* to set aside judgment would have been a Motion to Set
27 Aside Judgment, in the prior action, under Code Civ. Proc. § 473(b), which provides in relevant
28 part:

1 The court may ... relieve a party ... from a judgment, ... taken against the
2 party through the party's mistake, inadvertence, surprise, or excusable neglect.
3 Application for this relief ... shall be made within a reasonable time, in no case
4 exceeding six months, after the judgment ... or proceeding was taken.

5 Here, the underlying jury verdict and entry of judgment was ordered by this Court on April
6 25, 2025. (See RFJN **Ex. S**, *Notice of Entry of Judgment*). Hence, the very last day that Plaintiff
7 *could* have moved for relief under § 473(b), came and went on October 24, 2025 (6 months or 182
8 days from entry of judgment). However, Plaintiff did not move properly under § 473(b), but instead
9 filed this frivolous new lawsuit on December 23, 2025. Therefore, even if the Court were to interpret
10 this new lawsuit as what Plaintiff should have filed—a § 473(b) Motion—it would still be time-
11 barred. This timeliness issue alone subjects the FAC to demurrer without leave to amend.

12 **E. No Standing and Misjoinder (Code Civ. Proc. § 430.10(d))**

13 Plaintiff lacks standing against Defendants in their capacities as insurance carrier and
14 counsels for a third-party insured—to whom Plaintiff lost at trial—hence this is also misjoinder.

15 “As a general rule, a third party may directly sue an insurer only when there has been an
16 assignment of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999)
17 71 Cal.App.4th 268.) Further, California courts have consistently held that an attorney cannot be
18 sued by an adverse party for that attorneys’ actions in representing their client, except for an action
19 for malicious prosecution. (See, e.g., *Norton v. Hines* (1975) 49 Cal.App.3d 917; *Omega Video v.*
20 *Superior Court*, (1983) 146 Cal. App. 3d 470.)

21 Here, Plaintiff obtained neither an assignment from, nor judgment against, the Insured,
22 ABDELHALIM. Plaintiff is a third party to Defendants, and had no direct relationship with them,
23 and seeks only to sue them for their respective roles in representing Insured, pre-trial. What is more,
24 Plaintiff cannot allege an action in malicious prosecution for Defendants pre-trial defense of
25 Plaintiff’s lawsuit.

26 Beyond these threshold bars, there are no specific allegations against CSAA, CARBONE,
27 and CHAMBERS claiming that CARBONE and CHAMBERS made any specific misleading
28 representations to the Court, whatsoever. None of the allegations of “fraud on the Court” are even
alleged against these demurring Defendants. Indeed, Defendants CSAA, CARBONE, and

1 CHAMBERS did not litigate at trial and had no role in the alleged “misleading representations to
2 the Court.” (*FAC* p. 10:16-22). Indeed, Plaintiff’s *FAC* improperly imputes the acts of PSA, against
3 Defendants. Plaintiff cites no authority for the proposition that he can hold an insurance company
4 and prior defense counsels responsible for the litigation conduct of a third-party insurance defense
5 counsel (PSA), while defending a third-party insured. Joinder of CARBONE and CHAMBERS is
6 also inappropriate. The *FAC* asserts: “Defendants PSA, Navaratnasingham, and Reyna [*PSA*] were
7 the counsel who made, ratified, and perpetuated these false representations” to the Court, at the
8 motion in limine phase, pre-trial. (*FAC* p. 9-10). All allegations are an effort to impute claims made
9 by PSA (motions in limine) to prior counsel: CARBONE and CHAMBERS. This is insufficient;
10 therefore, Plaintiff does not have standing to sue Defendants and his effort to do so is subject to
11 demurrer without leave to amend.

12 Therefore, this demurrer should be sustained without leave to amend.

13 **VI. CONCLUSION**

14 For all the foregoing reasons, a demurrer without leave to amend should be sustained as to
15 Plaintiff’s *FAC* against these demurring Defendants: i) CSAA INSURANCE EXCHANGE, ii)
16 CARBONE, SMITH & KOYAMA, and iii) MICHAEL R. CHAMBERS.

17
18 Dated: April 13, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O’Connell

By _____
Chad S. Tapp
Tyler J. O’Connell
Attorneys for Defendants
CSAA INSURANCE EXCHANGE,
CARBONE, SMITH & KOYAMA, AND
MICHAEL R. CHAMBERS

1 ***Franciscus Dylan Rosario v. Subhi Abdelhalim; CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631801***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **MEMORANDUM OF POINTS AND**
7 **AUTHORITIES IN SUPPORT OF DEFENDANTS' DEMURRER TO PLAINTIFF'S FIRST**
8 **AMENDED COMPLAINT.**

9 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served 10 the above referenced document(s) by registered or certified mail, return receipt requested, with the United 11 States Postal Service, in a sealed envelope with postage fully prepaid.
12	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed 13 below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's 14 office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being 15 served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning 16 and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the 17 party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
18	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
19	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

20 Addressed as follows:

21 **PLAINTIFF, IN PRO PER**

22 Franciscus Dylan Rosario
23 7624 Melody Drive
24 Rohnert Park, CA 94928
25 soltrinox@gmail.com

26 I declare under penalty of perjury under the laws of the State of California that the foregoing
27 is true and correct. Executed on Sacramento, California on April 13, 2026.

28 **Monique Schubert**
Monique Schubert